

TECHNOLOGY SUPPORT SERVICES AGREEMENT

Contract No. CT-2025-018 | Executed source copy

FICTIONAL INTERVIEW DEMO - NOT A REAL AGREEMENT

Customer	Northstar Industrial Operations, Inc. (fictional)
Supplier	Harbor Technology Solutions Inc. (fictional)
Effective date	January 1, 2025
Initial term	January 1, 2025 through December 31, 2026
Contract value	\$720,000 total not-to-exceed value
Contract owner	Selina Armstrong, Contract Administrator

1. Scope of Services

Supplier will provide service-desk support, endpoint administration, network monitoring, cybersecurity incident coordination, scheduled maintenance, and technology asset reporting for Customer's California operations. Services include Tier 1 through Tier 3 support and coordination with approved hardware and software vendors.

Supplier will maintain a documented ticketing process and provide monthly service reports showing ticket volume, response time, resolution time, recurring incidents, corrective actions, and open risks. Work outside the agreed scope requires a written change order signed by both parties.

2. Service Levels

Priority 1	15-minute acknowledgment; continuous effort; target restoration within 4 hours
Priority 2	1-hour acknowledgment; target resolution within 1 business day
Priority 3	4-business-hour acknowledgment; target resolution within 3 business days
Availability	99.9% monthly availability for managed production services

If Supplier misses a monthly service level, Supplier will deliver a root-cause analysis and corrective-action plan within five business days. Repeated failure may trigger service credits or termination for cause.

3. Fees and Invoicing

Customer will pay fixed monthly fees of \$30,000, subject to the total not-to-exceed amount of \$720,000 for the initial term. Supplier will invoice monthly in arrears and include the contract number, service month, approved reimbursable expenses, and supporting detail.

Undisputed invoices are payable Net 30 after receipt of a correct invoice. Customer may withhold disputed amounts while the parties work in good faith to resolve the dispute. Supplier may not increase rates during the initial term without a signed amendment.

4. Personnel and Subcontractors

Supplier will assign qualified personnel and remain responsible for their performance. Customer may reasonably request replacement of personnel whose conduct, qualifications, or access creates an operational or security risk. Supplier may not use a subcontractor with access to Customer systems or confidential information without prior written approval.

5. Information Security and Privacy

Supplier will maintain administrative, physical, and technical safeguards consistent with generally accepted industry practices. At minimum, Supplier will use multi-factor authentication, least-privilege access, encryption in transit and at rest, endpoint protection, secure logging, vulnerability management, and annual security awareness training.

Supplier will notify Customer without undue delay and no later than 24 hours after confirming a security incident affecting Customer data or systems. Supplier will preserve relevant evidence, cooperate with investigation and remediation, and provide written updates until closure.

Customer data remains Customer property. Supplier may use Customer data only to perform this Agreement and will return or securely delete it at termination, subject to documented legal-retention requirements.

6. Confidentiality

Each party will protect the other party's confidential information using at least reasonable care and will disclose it only to personnel and approved subcontractors who need it to perform this Agreement and are bound by confidentiality obligations. Confidential information excludes information independently developed, lawfully received without restriction, publicly available through no breach, or approved for release in writing.

7. Insurance

During the term, Supplier will maintain commercial general liability of at least \$2,000,000 aggregate, technology errors and omissions of at least \$2,000,000, cyber liability of at least \$2,000,000, workers compensation as required by law, and automobile liability where vehicles are used. Supplier will provide certificates of insurance upon request and notify Customer of material cancellation or reduction.

8. Compliance and Records

Supplier will comply with applicable federal, state, and local laws, Customer site rules provided in writing, export controls, anti-bribery requirements, and accessibility obligations applicable to the services. Supplier will retain billing and performance records for four years after final payment and make relevant records available for reasonable audit.

9. Indemnification

Supplier will defend and indemnify Customer from third-party claims arising from Supplier's negligence, willful misconduct, infringement of intellectual property rights, or breach of confidentiality or data-security obligations. Customer will promptly notify Supplier and provide reasonable cooperation. Supplier may not settle a claim in a manner that admits Customer liability or imposes non-monetary obligations on Customer without written consent.

10. Limitation of Liability

Except for excluded claims, each party's aggregate liability under this Agreement will not exceed the fees paid or payable during the twelve months preceding the event giving rise to the claim. Excluded claims include fraud, willful misconduct, confidentiality breach, data-security breach, infringement indemnity, and amounts owed for services properly performed.

11. Term, Renewal, and Termination

The initial term begins January 1, 2025 and expires December 31, 2026. The Agreement automatically renews for successive one-year periods unless either party provides written notice of non-renewal at least sixty (60) days before the current term expires. For the initial term, the non-renewal notice deadline is November 1, 2026.

Either party may terminate for material breach if the breach remains uncured thirty days after written notice, or ten days for failure to pay undisputed amounts. Customer may terminate for convenience on sixty days written notice and will pay for accepted services performed through the effective termination date.

At termination, Supplier will support an orderly transition for up to ninety days at the then-current rates, return Customer property, revoke access, deliver current documentation, and certify deletion of Customer data when required.

12. Notices

Formal notices must be in writing and delivered by nationally recognized overnight courier, certified mail, or confirmed electronic delivery to the contacts below. Operational communications and service tickets do not constitute legal notice.

Customer notices	Legal Department, Northstar Industrial Operations, Inc., 1000 Harbor Center Drive, Oakland, CA 94607
Supplier notices	Contracts Department, Harbor Technology Solutions Inc., 455 Market Plaza, San Francisco, CA 94105

13. Governing Law and Disputes

This Agreement is governed by the laws of the State of California without regard to conflict-of-law rules. Before filing suit, authorized representatives will meet in good faith to resolve the dispute. Exclusive venue for unresolved disputes will be the state or federal courts located in Alameda County, California.

14. General Terms

Neither party may assign this Agreement without the other party's written consent, except to an affiliate or successor in connection with a merger or sale of substantially all relevant assets. Supplier is an independent contractor. Neither party may bind the other. Waiver must be in writing. If a provision is unenforceable, the remaining provisions remain effective.

This Agreement, its exhibits, approved statements of work, and signed amendments are the complete agreement concerning the services and supersede prior proposals and discussions. Conflicting purchase-order terms are rejected. Amendments must be signed by authorized representatives of both parties.

The parties have caused this Agreement to be executed by their authorized representatives. Electronic and counterpart signatures are effective as originals.

NORTHSTAR INDUSTRIAL OPERATIONS, INC.	HARBOR TECHNOLOGY SOLUTIONS INC.
/s/ Elena Martinez	/s/ Christopher Allen
Elena Martinez Vice President, Operations Date: December 18, 2024	Christopher Allen President Date: December 19, 2024

EXHIBIT A - SERVICE GOVERNANCE

The parties will hold a monthly operations review and a quarterly executive review. Supplier will provide the monthly report at least three business days before the operations review. Escalations will move from the service delivery manager to the account executive and then to the executive sponsors.

Monthly report	Service levels, ticket trends, changes, incidents, risks, planned maintenance, asset status
Quarterly review	Performance, roadmap, security posture, financial status, improvement plan
Change control	Written request, impact assessment, approval, implementation plan, closure evidence
Renewal review	Internal review starts October 1, 2026; notice deadline November 1, 2026